

COUNCIL DECISION (CFSP) 2015/259

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COUNCIL DECISION (CFSP) 2015/259

of 17 February 2015

in support of activities of the Organisation for the Prohibition of Chemical Weapons (OPCW) in the framework of the implementation of the EU Strategy against Proliferation of Weapons of Mass Destruction

THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty on European Union, and in particular Article 28 thereof,

Whereas:

(1)

On 12 December 2003, the European Council adopted the EU Strategy against Proliferation of Weapons of Mass Destruction (hereinafter the 'EU Strategy'), Chapter III of which contains a list of measures to combat such proliferation.

(2)

The EU Strategy underlines the crucial role of the Convention on the Prohibition of the Development, Production, Stockpiling and Use of Chemical Weapons and on their Destruction ('CWC') and of the OPCW in creating a world free of chemical weapons. As part of the EU Strategy, the Union has committed itself to working towards universal adherence to key disarmament and non-proliferation treaties and agreements, including the CWC. The objectives of the EU Strategy are complementary to the objectives pursued by the OPCW, in the context of the latter's responsibility for the implementation of the CWC.

(3)

On 22 November 2004, the Council adopted Joint Action 2004/797/CFSP (1) on support for OPCW activities, followed on its expiry by Joint Action 2005/913/CFSP (2), which in turn was followed by Joint Action 2007/185/CFSP (3). Joint Action 2007/185/CFSP was followed by Decision 2009/569/CFSP (4) and Decision 2012/166/CFSP (5) which expires on 31 January 2015.

(4)

The continuation of such intensive and targeted assistance from the Union to the OPCW is necessary in the context of the active implementation of Chapter III of the EU Strategy. There is a need for further activities promoting the full implementation of the CWC as well as activities enhancing the preparedness of State Parties to the CWC ('State Parties') to prevent and respond to attacks involving toxic chemicals, international cooperation in the field of chemical activities, and the ability of the OPCW to adapt to developments in the field of science and technology. Measures related to the universalisation of the CWC should continue and be adapted to and targeted at the declining number of States not Parties to the CWC.

(5)

From 8 to 19 April 2013, the Third Special Session of the Conference of the State Parties to Review the Operation of the CWC took place in The Hague, the Netherlands. The Union supported the final report of

the Conference, which addressed all aspects of the CWC and made important recommendations on its implementation. Those recommendations also include priority objectives for the Union referred to in Recital 4 and the EU Strategy. Support for the implementation of those recommendations is crucial to ensure continued relevance of the CWC and preventing the re-emergence of chemical weapons.

(6)

The Union has provided political, financial and in-kind support to the joint UN-OPCW operations in Syria aimed at the total destruction of Syrian chemical weapons and agents. The Union is determined to build on the lessons learned from Syria,

HAS ADOPTED THIS DECISION:

Article 1

1. For the purpose of giving immediate and practical application to some elements of the EU Strategy, the Union shall support activities of the OPCW, with the following objectives:

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to enhance the capacities of State Parties in fulfilling their obligations under the CWC,

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to enhance the preparedness of State Parties to prevent and respond to attacks involving toxic chemicals,

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to enhance international cooperation in the field of chemical activities,

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to support the ability of the OPCW to adapt to developments in the field of science and technology,

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to promote universality by encouraging States not Parties to join the CWC.

2. In this context, the Union-supported activities of the projects of the OPCW, which are in compliance with the measures of the EU Strategy, shall be the following:

Project I: National Implementation, Verification and Universality

Activities:

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Regional Training Course for Customs Authorities of State Parties on Technical Aspects of the CWC's Transfers' Regime

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Updating e-learning tools for national authorities/associated stakeholders

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Support for Development of 'Advocacy' Plans for raising awareness on the national implementation of the CWC

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National Implementation Capacity Assessment for National Authorities

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Mentorship Programme

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Legal workshop for Caribbean and Central American State Parties

-

Strengthening Training Capabilities for OPCW Technical Secretariat inspectors and experts

-

Modernisation of the Information Management Systems for the OPCW Verification Division

-

Visits of Executive Council representatives and Observers of State Parties with developing economies to chemical weapons destruction facilities

-

Implementing the lessons arising from the Syria mission

Project II: International Cooperation

Activities:

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Analytical skills development course

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Industry Outreach

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Chemical Safety and Security Management Workshops

Project III: Science and Technology

Activities:

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Chemical informatics for facilitating international collaboration

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Assessment of developments in science and technology

-

Multiple uses of chemistry: understanding the security aspects of technological developments

-

Support for Temporary Working Groups (TWGs) of the OPCW's Scientific Advisory Board (SAB)

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The development of standardised analytical methods for the analysis of biological toxins

Project IV: Preparedness of State Parties to prevent and respond to attacks involving chemicals

Activities:

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Regional Assistance and Protection Training - Central Asia

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Regional Coordination Exercise on Assistance Delivery

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Regional Assistance and Protection Workshops

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Table Top Exercises

Project V: Universality and outreach

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Translation and dissemination of education and outreach tools and materials

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Production of an OPCW exhibition

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Youth outreach

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Universality Facilitation for Non-State Parties to join the CWC

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Support for NGO participation in OPCW activities

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Support for development and promotion of 'Fires' video documentary series

Project VI: Africa Programme

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Regional National Authority Stakeholders Forum

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Regional Training Course for Customs Authorities of State Parties on Technical Aspects of the CWC's Transfers' Regime

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Provision of Academic/Informative Materials on CWC

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Synergies and Partnership for effective implementation

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Analytical Skills Development Courses

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Industry Outreach

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Chemical Safety and Security Management

A detailed description of the Union-supported activities of the OPCW referred to above is set out in the Annex.

Article 2

1. The High Representative of the Union for Foreign Affairs and Security Policy (HR) shall be responsible for the implementation of this Decision.

2. Technical implementation of the projects referred to in Article 1(2) shall be carried out by the OPCW Technical Secretariat (the 'Technical Secretariat'). It shall perform this task under the responsibility and the control of the HR. For this purpose, the HR shall enter into the necessary arrangements with the Technical Secretariat.

Article 3

1. The financial reference amount for the implementation of the projects referred to in Article 1(2) shall be EUR 2 528 069.

2. The expenditure financed by the amount set out in paragraph 1 shall be managed in accordance with the procedures and rules applicable to the general budget of the European Union.

3. The Commission shall supervise the proper management of the expenditure referred to in paragraph 1. For this purpose, it shall conclude a financing agreement with the Technical Secretariat. The agreement

shall stipulate that the Technical Secretariat is to ensure visibility of the Union contribution, commensurate with its size and specify measures facilitating developing synergies and avoiding duplication of activities.

4. The Commission shall endeavour to conclude the financing agreement referred to in paragraph 3 as soon as possible after 17 February 2015. It shall inform the Council of any difficulties in that process and of the date of conclusion of the agreement.

Article 4

The HR shall report to the Council on the implementation of this Decision on the basis of regular reports prepared by the Technical Secretariat. The HR reports shall form the basis for the evaluation carried out by the Council. The Commission shall provide information on the financial aspects of the projects referred to in Article 1(2).

Article 5

1. This Decision shall enter into force on the date of its adoption.

2. This Decision shall expire 36 months after the date of the conclusion of the financing agreement referred to in Article 3(3). However, it shall expire six months after its entry into force if that financing agreement has not been concluded by that time.

Done in Brussels, 17 February 2015.